



File No.: EXP202306254

RESOLUTION OF EXPIRATION OF THE SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A (hereinafter, the claimant), represented by B.B.B., representation which is duly accredited in the file, on 02/03/2021 filed a complaint with the Spanish Agency for Data Protection (AEPD). The receipt generated by the submission of that complaint in the AEPD registry carries the reference number "O00007128e2100009058".

The complaint is directed against the AYUNTAMIENTO DE GATA, with NIF P1008500I (hereinafter, the defendant or the AYUNTAMIENTO). The complaint is based on the fact that, at the beginning of the year 2018, the AYUNTAMIENTO registered the claimant as a taxpayer of the water supply fee for the urban properties located at ***ADDRESS.1 (hereinafter, the urban properties) in place of the previous holder, her spouse, despite the fact that neither she requested the registration nor did the previous holder request the cancellation. The claimant adds that the AYUNTAMIENTO did not communicate the change of taxpayer nor informed her about the processing of her data for that purpose in the terms provided in Article 14 of Regulation (EU) 679/2016, General Data Protection Regulation (GDPR).

The claimant insists that until early 2018 her spouse was listed as the holder of the water fee and the sanitation fee for the properties, and without any legal reason or any administrative change in her relationship with the AYUNTAMIENTO, it proceeded to replace the data of the then holder (name, surname, and NIF) with hers. She adds that the first notice she had of the change in the ownership of the fee was on 01/06/2018, when the "sanitation fee register" was publicly displayed, and she was handed two receipts for the first quarter of 2018 related to the urban properties for the concept "water and Gobex fee".

Regarding the origin of her personal data that is being processed by the AYUNTAMIENTO as a taxpayer of the water supply fee, the claimant states that it was obtained from the information associated with the Property Tax (IBI) of the urban properties, of which she is the owner. In relation to this issue, she provides (Annex 1) the resolution issued by the AYUNTAMIENTO on 20/01/2021 in which it responds to the right of access to her data that appears in the file "Fee for the management of the home water service" that she exercised on 12/04/2019. The resolution of the AYUNTAMIENTO contains this information:

- In the section "Categories of personal data," the name, surname, and ID number of the claimant, followed by this legend:

"Holder of the properties: C/***ADDRESS.1, 10860 Gata (Cáceres)

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- In the section "Purposes of the processing" it states:

"(Since the first quarter of 2018). Management of the Fee for the Provision of Home Water Service and the Sanitation Fee of the Junta de Extremadura."

- In the section "Recipients," it states:

"Those legally established (Ayuntamiento de Gata, Junta de Extremadura)"

- In the section "Information available about the origin of the data":

"Urban IBI 2017."

The claimant warns that the first time the AYUNTAMIENTO responded to the exercise of the right of access was in that document, since, contrary to what the claimed Ayuntamiento has stated before the AEPD in other proceedings, in the resolution it issued on 09/08/2018 - a copy of which she provides as Annex 20 - it did not respond to the requested access, since it only informed her about the "Purposes

of the processing" for the "SANITATION FEE MANAGEMENT GOBEX," without mentioning the water fee at all.

The claimant invokes the Fiscal Ordinance 01/2008, regulating the fee for the provision of home water service, published in the Provincial Bulletin of Cáceres on 27/06/2008, whose Article 2 states:

"The subjects liable for this fee are the natural and legal persons and the Entities using the service.

The occupants of the houses or premises, and the owners thereof, shall be jointly and severally liable for the obligations established in this Ordinance."

She also cites Article 7, first paragraph, of the Fiscal Ordinance according to which "The interested parties shall request registration in the census of the fee, making the payment by receipt within a maximum period of one month, with the installation of the meter being the responsibility of the neighbor." And the fourth paragraph which states: "Once the taxpayer has registered, they will appear in the successive censuses that are prepared for the management of the collection, accruing annually." She accompanies her complaint with twenty documents. In addition to the aforementioned Annex 1 - the response of the AYUNTAMIENTO to the access that the claimant exercised on 12/04/2019 - the following:

- The one issued by the Autonomous Organization of Collection and Tax Management of the Provincial Council of Cáceres responding to the right of access to her data that appears in the files corresponding to the Property Tax of urban nature of the Ayuntamiento de Gata. (Annex 2).

It includes a list by property – (...) – with the "Receipts issued and collected" of the IBI during the fiscal years 2013 to 2019, both inclusive. Each of the receipts contains the personal data of the claimant - name, surname, and NIF - as the taxpayer of the tax.

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- Copy of the receipts issued by the CITY COUNCIL in the name of the claimant for the concept "WATER AND GOBEX FEE". All of them include the name, two surnames, and NIF of the claimant:

- i. Regarding the urban property at number 11, the following receipts are submitted: dated 07/03/2018 (annex 18); 28/05/2018 (annex 4); 03/09/2018 (annex 6); 27/11/2018 (annex 8); 15/10/2019 (annex 10); 17/10/2019 (annex 12); and 20/11/2019 (annexes 14 and 16).

- ii. Regarding the urban property at number 9, the following receipts are submitted: dated 07/03/2018 (annex 17); 28/05/2018 (annex 3); 03/09/2018 (annex 5); 27/11/2018 (annex 7); 15/10/2019 (annex 9); 17/10/2019 (annex 11); and 20/11/2019 (annexes 13 and 15).

- As annex 19, the document that the claimant addressed to the CITY COUNCIL -with a submission stamp from the Subdelegation of the Government of Cáceres dated 20/07/2018- through which she exercises her right to access her data from the file of the "Municipal Fee for the Provision of Water Supply Service".

- As annex 20, the response from the CITY COUNCIL to the access requested through the document provided as document number 19: the resolution issued on 09/08/2018, in file number 234/2018, "Procedure: Access by interested parties to personal data". In the dispositive part, the Mayor of the CITY COUNCIL resolves: "First: Grant the interested party access to the personal data concerning her that is being processed in this City Council related to the Sanitation Fee Registry GOBEX." In the information provided in response to the access request, it is indicated that the purpose of the data processing is "Management of Sanitation Fee GOBEX".

Despite what the claimant has asserted, there is no document among those submitted that proves that the taxpayer of the fee prior to the date of the events was the spouse of the claimant.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGD), this complaint was forwarded to the CITY COUNCIL for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out electronically in accordance with the provisions of Law 39/2015, of October 1, on Common Administrative Procedure of Public Administrations (LPACAP), was made

available to the complained party at the electronic headquarters on 18/03/2021 and was accepted by her on that same date. This is recorded in the certificate in the file, issued by the Support Service of the Electronic Notification Service and Enabled Electronic Address of the National Mint and Stamp Factory (hereinafter, FNMT certificate). No response has been received from the CITY COUNCIL to the request for information.

THIRD: On 04/06/2021, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing. The admission agreement was communicated to the claimant, who accepted the postal notification on 16/06/2021, as evidenced in the file.

FOURTH: Subsequent to the admission for processing of the complaint that has given rise to this initiation agreement for sanctioning procedure - a complaint that was submitted on 02/03/2021 - the claimant has submitted the following documents related to the aforementioned complaint of 02/03/2021 to the AEPD:

1. Document dated 02/12/2021, registered with the AEPD on 03/12/2021, with reference number "O00007128e2100049752".

She requests to be informed of the "reference number of the file corresponding to the Agreement of the Director of this Agency, dated June 4, 2021, by which the complaint submitted [...] on 02/03/2021 and entry registration number O00007128e2100009058, for alleged infringement related to the unlawful processing of her personal data of the IBI for the management of the water supply fee."

2. Document dated 13/01/2022, with entry registration number at the AEPD "O00007128e2200001302".

This is a new complaint from the claimant against the CITY COUNCIL.

The claimant justifies this second complaint by stating that, although the AEPD issued an admission agreement for the one she submitted on 02/03/2021 - which is the complaint that gives rise to this initiation agreement - more than "[...] six months have passed, [without] the resolution of the acceptance or not of the complaint and the initiation or not of sanctioning procedure with the City Council of Gata, being possible that it has not been notified [...]"

In essence, the claimant, through this document:

- i. Requests that the complaint she submitted on 02/03/2021 - which is the complaint at hand - be annexed to the one she is now submitting on 13/01/2022, "for the purpose of reproducing the facts that broadly outline the unlawful processing of personal data of the IBI of the affected party as it is being processed without her consent for the management of the water supply fee [...] against what is established in the 2008 ordinance of the water fee published in the BOP of Cáceres [...]".
- ii. States that on 23/11/2021, the Autonomous Collection and Tax Management Agency (OARGT) of the Provincial Council of Cáceres responded to the access to the data corresponding to the water supply fee of the CITY COUNCIL, a document that she provides as annex 2.
- iii. States that the OARGT informs that "[...] the purpose of processing the data of the affected party regarding the water supply fee by the OARGT is the management of registries."

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municipalities and the management and collection of taxes and other public law income by delegation of the Local Entities of the province, as well as that these data originate from or were provided by the City Council of Gata ("Issuance of the Register of the City Council of Gata"), providing a copy of data communicated from two receipts (4th Quarter of 2019) billing the water supply fee and sanitation fee of the Autonomous Community of Extremadura."

iv.

It concludes that the CLAIMED CITY COUNCIL transferred its data to the OARGT and, since it states that the data was obtained unlawfully from the IBI, the transfer constitutes a new unlawful processing: "That, therefore, it is obvious that the City Council transferred to the OARGT the IBI data processed to register the affected party in the Water Supply Fee, bill it, and collect it, in accordance with the collection notices published by the OARGT (BOP Cáceres of 20/07/2021 and 19/11/2021) [...]"

"That regardless of the agreements that were adopted for the delegation by the City Council of Gata and their acceptance by the Honorable Provincial Council of Cáceres that foresees the transfer of the data of the taxpayers of the Water Supply Fee for its collection, having obtained and processed the IBI data unlawfully to grant registration in the register and bill successive quarters of the water supply fee

without their consent and against the Ordinance published requiring that the data be provided by the interested parties, the transfer or communication to a third party, in this case to the OARGT, of the data of the affected party for the purpose of collecting the water supply fee, constitutes another unlawful processing by transferring them, violating the rights of the affected party to bill and collect the water supply fee illegally.”

v.

It qualifies these behaviors as violations of Articles 5 and 6 of the RGPDD, classified as very serious infractions in Articles 72.1, a), b) and d) of the LOPDGDD and Article 83.5 of the RGPD, and requests the initiation of sanctioning proceedings against the aforementioned City Council.

It submits with the new complaint these documents:

- Annex 1: The resolution issued by the CITY COUNCIL on 20/01/2021 in which it responds to the right of access to its data contained in the file “Fee for the management of the water supply service at home” exercised on 12/04/2019. It is the same document submitted as Annex 1 to the first complaint, filed on 02/03/2021, which has been described in Fact One of this agreement, to which we refer.

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- Annex 2: Document issued by the Autonomous Collection and Tax Management Agency of the Provincial Council of Cáceres (OARGT) signed on 23/11/2021, in which it responds to the access exercised by the complaining party to the data contained in the file of the Water Supply Fee of the City Council of Gata.

The OARGT informs that it manages collection and tax management services by delegation of the Local Entities of the province of Cáceres. That the purposes of processing their personal data are “the management of municipal registers and the management and collection of taxes and other public law income.” That “The identifying data of the tax originate from those provided by the City Council of Gata.” That “These data, also the specific data of the taxpayer, for tax purposes, can be consulted through the electronic headquarters of the agency [...]

2.

Written document dated 18/10/2022 with registration number “REGAGE22e00046481722”. In this new document, the complainant requests:

i.

That the complaint filed against the City Council of Gata on 12/01/2022 be admitted for processing, as more than three months have passed and no notification of the admission agreement has been received.

ii.

That an authentic copy of the complete file of the complaint filed on January 12, 2022, by this party against the City Council of Gata for unlawful processing of the affected party's data be sent to her “as soon as possible and in paper format,” for which she provides a postal address for notification purposes.

3.

Written document dated 7/12/2022 with registration number “REGAGE22e00056060942”, in which she reiterates the two requests made in the previous document (point 3).

FIFTH: On 06/03/2023, the Director of the Spanish Data Protection Agency agreed to initiate sanctioning proceedings against the claimed party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Articles 6.1 and 14 of the RGPD, classified in Article 83.5.a) and b) of the RGPD, respectively.

The notification of the opening agreement was made on the same date of 06/03/2023, as stated in the certification issued by the Electronic Notification Service and the Enabled Electronic Address of the FNMT-RCM that is part of the file.

SIXTH: The agreement to initiate the procedure was notified to the claimed party on 07/03/2023,

granting them a period to submit allegations. However, no written document has been received in this AEPD.

SEVENTH: On 13/10/2023, the instructing body agrees to open a phase

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of evidence.

The claim filed by the claimant party and its attached documentation is considered reproduced; the documents obtained and generated by this Spanish Agency for Data Protection (AEPD) during the admission phase of the claim and the writings that the claimant party has submitted to the AEPD from the date the claim was registered with this agency, which led to the opening of the sanctioning file that concerns us, and until the date the initiation agreement was signed; as well as those submitted by the claimant party after the initiation agreement of the sanctioning file was communicated to them.

On the other hand, during this evidentiary phase, it was agreed to request information and/or documentation from the claimant and claimed parties and from the Autonomous Collection and Tax Management Agency of Cáceres.

By means of a Diligence dated 08/11/2023, documentation from procedure TD/176/2021 was incorporated into the referenced file for evidentiary purposes.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Procedures in case of possible violation of data protection regulations

Article 64 of the LOPDGDD, in its wording in force at the time the present sanctioning procedure was opened, establishes the following regarding procedures in case of possible violation of data protection regulations:

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2. When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 and this organic law, it shall be initiated by an initiation agreement adopted on its own initiative or as a result of a claim.

If the procedure is based on a claim made before the Spanish Agency for Data Protection, prior to this, it will decide on its admission for processing, in accordance with the provisions of Article 65 of this organic law.

When the rules established in Article 60 of Regulation (EU) 2016/679 are applicable, the procedure shall be initiated by adopting the draft initiation agreement of the sanctioning procedure, of which formal notification will be made to the interested party for the purposes provided in Article 75 of this

organic law.

Once the claim has been admitted for processing, as well as in cases where the Spanish Agency for Data Protection acts on its own initiative, prior to the initiation agreement, there may be a phase of preliminary investigative actions, which shall be governed by the provisions of Article 67 of this organic law.

The procedure shall have a maximum duration of nine months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. Once this period has elapsed, it shall expire, and consequently, the proceedings shall be archived.

3. (...)

4. The processing deadlines established in this article, as well as those for admission to processing regulated by Article 65.5 and the duration of the preliminary investigative actions provided for in Article 67.2, shall be automatically suspended when information, consultation, request for assistance, or mandatory pronouncement from an organ or agency of the European Union or one or more supervisory authorities of the Member States must be obtained, in accordance with the provisions of Regulation (EU) 2016/679, for the time that elapses between the request and the notification of the pronouncement to the Spanish Agency for Data Protection."

According to the provisions of the transcribed article, the sanctioning procedure shall be understood as expired if, after more than nine months from the date of the initiation agreement, no resolution of the sanctioning procedure has been issued and notified.

In the present case, the initiation agreement was signed on 06/03/2023. The nine-month maximum duration of the sanctioning procedure ended on 06/12/2023, and currently, the procedure is still pending completion, so it must be declared expired.

III

Prescription of the infringement

On the other hand, Article 95.3 of the aforementioned LPACAP states that:

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"The expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into this new procedure. In any case, the new procedure must fulfill the requirements for allegations, proposal of evidence, and hearing of the interested party."

Therefore, in accordance with the above, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the EXPIRATION of the present sanctioning procedure, marked with the file number EXP202306254, followed against the entity AYUNTAMIENTO DE GATA, with NIF P10085001, for the alleged infringement of articles 6.1 and 14 of the GDPR, classified in article 83.5.a) and b) of the GDPR, respectively.

SECOND: TO NOTIFY this resolution to AYUNTAMIENTO DE GATA.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

938-101224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with art. 48.2 LOPDGDD, due to vacancy of the position of Presidency and Deputy Presidency

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